

		The evidence thus shows the contract, Plaintiff's performance, Johnsonvan's breach, and resulting damages. Accordingly, Plaintiff met its initial burden of establishing each element of its breach of contract claim. Johnsonvan failed to oppose the motion and thus failed to show there are any disputed issues of material fact to prevent summary adjudication. Based on the foregoing, the motion is GRANTED. Counsel for Plaintiff is to submit a proposed order and is ordered to give notice of this ruling.
7	Vicens vs. General Motors, LLC	Cont. to 6/13.
8	Cappuccini v. The Regents of the University of California	Before the Court is a demurrer filed by defendant The Regents of the University of California (Defendant) to the Second Amended Complaint (SAC) of plaintiff Fabio Cappuccini (Plaintiff). For the reasons set forth below, the demurrer is SUSTAINED with 20 days' leave to amend. A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Code of Civ. Proc. § 430.10, subd. (e).) Defendant demurs to the second cause of action for wrongful termination. Because a public entity is liable for acts or omissions only as provided by statute, a common law claim for wrongful termination in violation of public policy does not lie against a public entity. (Gov. Code § 815, subd. (a); <i>Miklosy v. Regents of the University of California</i> (2008) 44 Cal.4th 876, 900-901; <i>Lloyd v. County of Los Angeles</i> (2009) 172 Cal.App.4th 320, 329; <i>McAllister v. Los Angeles Unified School Dist.</i> (2013) 216 Cal.App.4th 1198, 1219.) Plaintiff argues the wrongful termination claim is grounded in the statutory policy of FEHA, which expressly applies to public entities. Plaintiff's argument is misplaced. It is true public entities are covered "employers" subject to FEHA. (Gov. Code § 12926, subd. (d).) But Plaintiff does not allege any statutory claim pursuant to FEHA. The fact that Plaintiff's wrongful termination is tethered to the public policy under FEHA does not change the common law claim to a statutory claim. Plaintiff next argues that he alleges a viable claim for breach of contract. Preliminarily, the second cause of action is specifically captioned "wrongful termination" not breach of contract. (SAC, p. 3.) Plaintiff also fails to plead the elements of a breach of contract claim, including the contractual terms allegedly breached and Plaintiff's performance or excuse for performance. (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821 [elements]; <i>Construction Protective Services, Inc. v. TIG Specialty Ins. Co.</i> (2002) 29 Cal.4th 189, 198-199 [a written contract may be pleaded verbatim, by its legal intent and effect].)

		The demurrer is therefore SUSTAINED with 20 days leave to amend. Case Management Conference is CONTINUED to October 30, 2026, at 9:30 a.m. Counsel for Defendant shall provide notice of this ruling.
9	Hallett v. Waterfront Resort Properties, LP et al	Before the Court at present are: (1) the "Motion For Order Requiring Vexatious Litigant And Pro-Per Plaintiff Darrell Hallett To Furnish Security Pursuant To CCP §391.3," filed on 12/23/25 by defendants Waterfront Resort Properties LP, De Anza Corporation, Newport Dunes Resort and Marina Partnership, Dunes Resort LP, Dunes Resort LLC, Terra Vista Management Inc. and Phillip Ravenna ("Defendants") ("<u>Motion 1</u>" below); and (2) the Motion for Reconsideration of Order Imposing Monetary Sanctions, filed on 3/20/26 by Plaintiff Darrell Hallett ("Plaintiff") ("<u>Motion 2</u>" below). <u>Motion 1</u> is GRANTED IN PART. As a preliminary matter, there are numerous defects in the papers presented by Plaintiff in opposition to the motion. Plaintiff is reminded that future compliance with all filing deadlines, page limits, and all other filing requirements is expected, and that future violations may result in a refusal to consider such improper submissions. On the merits, the Motion fails to show that Plaintiff has no reasonable likelihood of prevailing on any of the causes of action that he has presented here. As Defendants seek an order, under C.C.P. § 391.1, requiring Plaintiff to furnish security, they must thus show that Plaintiff, who has already been deemed a vexatious litigant, has no "reasonable probability" of prevailing in this action. The court may weigh the evidence presented on the motion. (<i>Moran v. Murtaugh Miller Meyer & Nelson, LLP</i> (2007) 40 Cal.4th 780, 782.) Plaintiff's Third Cause of Action asserts a claim for violation of Civil Code §1671. Plaintiff asserts therein that Defendants charged him \$5,325 for a total of 71 daily late fees, in violation of Civil Code §1671. (Complaint, ¶¶ 79 – 110, 202-203.) Plaintiff also asserts that Defendants "cancelled" his future reservations due to nonpayment, and offered to refund \$1,052.78 in late fees only if he agree to certain conditions. (Complaint ¶¶ 175-179.) Defendants failed to fully address those assertions, arguing instead that they offered to refund "the only late fees actually and inadvertently collected from him in the amount of \$302.87." (ROA 141, p. 11; Ravenna Decl., ¶¶ 8-10.) But Defendants failed to provide any evidence to show what late fees were assessed when, which were actually paid, and how they calculated the refund. Nor have they presented authority to establish that merely refunding the collected portion of an allegedly unlawful fee would suffice to avoid any liability under §1671, and for any related claim based thereon.